

DEPARTMENT OF VETERANS AFFAIRS

**Justification and Approval (J&A)
For
Other Than Full and Open Competition**

Acquisition Plan Action ID: 36C246-26-AP-3315

1. **Contracting Activity:** Department of Veterans Affairs, NCO 06,100 Emancipation Dr Hampton, VA 23664 in support of Asheville VA Medical Center 1100 Tunnel Rd, Asheville NC 28805-2087. 637-26-3-6064-0308
2. **Nature and/or Description of the Action Being Approved:** Sole Source Emergent Contract for CCTV inspection, cleaning of sewer pipe, and installation of a Cure-in-Place Piping liner at the Asheville VA Medical Center
3. **Description of Supplies/Services Required to Meet the Agency's Needs:** Asheville VAMC has an emergent requirement for the installation of pipe liner in the sewer system at Asheville VAMC. The current state of the sewer has led to backups and repeated closures of buildings due to sewer overflows. Asheville has received OSHA complaints, because of the severity of the backups in the sewer, and in order to maintain a reasonable working environment, the sewer needs to be inspected cleaned and a resolution for the backups needs to be installed.
4. **Statutory Authority Permitting Other than Full and Open Competition:** 41 USC §3304(a)(5), 38 U.S. Code § 8127(c), as implemented by RFO 6.103-5 (Authorized or Required by Statute). COs may use the non-competitive (sole source) procedures authorized in [VAAR 819.7008 \(DEVIATION\)](#) or [VAAR 819.7009 \(DEVIATION\)](#)- up to \$5,000,000. Check the specific VAAR clause used below:

 (x) 819.7008 Sole source awards to a certified service-disabled veteran-owned small business;
 or
 () 819.7009 Sole source awards to a certified veteran-owned small business
5. **Demonstration that the Contractor's Unique Qualifications and/or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):**
Blue Cord Design and Construction, LLC is a verified SDVOSB who can quickly and efficiently provide the emergency sewer repair and lining services needed by the Asheville VAMC.
38 U.S.C. 8127 (c) allows for sole source awards to verified SDVOSBs who are determined to be responsible. Blue Cord Design and Construction has been determined to be responsible and has the unique capability of being able to deploy immediately to remedy the sewer problems that are present at Asheville VAMC.

6. **Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable, including whether a notice was or will be publicized as required by RFO 6.301 and, if not, which exemption under RFO 5.101(b)(1) applies:**

No notice has been posted as this was an emergency requirement, and the time between submission and award was too short for posting and quotes to be reasonable.

7. **Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:**

Based on current market rates and the independent government estimate the contractor's pricing of [REDACTED] is determined fair and reasonable.

8. **Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:** Basic Market Research was conducted, SBA Certifications was searched, and FPDS was searched, but because of the emergent nature of the repair and installation, no companies were contacted.

9. **Any Other Facts Supporting the Use of Other than Full and Open Competition:** None.

10. **Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:** None.

11. **A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:**

This is a one-time emergent contract, if there are future repairs required that are not of an emergent nature they will be fully competed amongst SDVOSBs.

12. **Requirements Certification:** I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

WILLIAM
STUEBER

William Stueber
Service Chief
Asheville VAMC

Digitally signed by WILLIAM
STUEBER
Date: 2026.04.20 11:06:02
-04'00'

Date

13. Approvals in accordance with the [VHAPM Part 806.3 OFOC SOP](#):

- a. **Contracting Officer or Designee's Certification (required)**: I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

NATASHA LEAHY Digitally signed by NATASHA LEAHY
Date: 2026.04.20 11:11:09 -04'00'

Natasha Leahy
Contracting Officer
NCO 6

Date

- b. **One Level Above the Contracting Officer (Required over the SAT but not exceeding \$900K):** I certify the justification meets requirements for other than full and open competition.

KEESHIA NEWMAN Digitally signed by KEESHIA NEWMAN
Date: 2026.04.21 07:42:55 -04'00'

Keeshia Newman
Division Chief
NCO 6

Date